

****31.01.2025****

****Sanction for GDPR Violation****

The National Authority for the Supervision of Personal Data Processing completed, in December 2024, an investigation into the operator S.P.E.E.H. HIDROELECTRICA S.A and found a violation of Article 25 paragraphs (1) and (2) of Regulation (EU) 2016/679.

As such, the operator was fined in the amount of 74,562 Lei (equivalent to 15,000 Euro).

The investigation was initiated following the notification sent by the operator S.P.E.E.H.

HIDROELECTRICA S.A regarding a personal data security breach, in accordance with the provisions of Article 33 of Regulation (EU) 2016/679.

During the investigation, it was found that the breach of personal data security occurred during the launch of the operator's application, as a result of a technical error and the failure to conduct sufficient testing in a test environment that simulates the real usage environment in all processes and interactions with other applications used by the operator.

This situation led to the loss of integrity and availability of personal data, namely to unauthorized disclosure and/or unauthorized access to personal data belonging to a significant number of data subjects.

Consequently, since the operator did not process personal data in a manner that ensures their adequate security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by taking appropriate technical or organizational measures, it was sanctioned with a fine for violating the provisions of Article 25 paragraphs (1) and (2) of Regulation (EU) 2016/679.

At the same time, a corrective measure was imposed on the operator to implement a technical and procedural testing plan in the test environment, which simulates the real production scenario in all plausible situations from the production environment, prior to the production launch of all components/applications intended to be introduced in activities that include personal data processing. The operator has paid the established contravention fine.

****Legal and Communication Department****

****A.N.S.P.D.C.P****